

IN THE HIGH COURT OF JUSTICE

COMMERCIAL DIVISION

Case No. HC-2024-003812

BETWEEN:

MERIDIAN CAPITAL PARTNERS LLP (Claimant)

and

NOVA LOGISTICS INTERNATIONAL PLC (Defendant)

PARTICULARS OF CLAIM

1. The Claimant, Meridian Capital Partners LLP, is a limited liability partnership registered in England and Wales under registration number OC412387, with its registered office at 14 Canary Wharf, London, E14 5AB.

2. The Defendant, Nova Logistics International PLC, is a public limited company registered in England and Wales under registration number 08234561, with its registered office at Unit 7, Heathrow Business Park, Hounslow, TW6 2AA.

3. By a written agreement dated 14 March 2023 (the 'Agreement'), the Defendant agreed to provide international freight forwarding and logistics services to the Claimant in respect of a consignment of commercial electronics destined for the UAE.

KEY DATES

14 March 2023: Logistics Agreement signed between parties.

2 April 2023: Consignment dispatched from Heathrow (AWB No. 176-22938471).

19 April 2023: Delivery deadline per Agreement — consignment not delivered.

27 April 2023: Claimant issued formal notice of breach to Defendant.

10 May 2023: Defendant acknowledged delay; attributed to port congestion in Dubai.

15 June 2023: Consignment partially delivered; 3 of 12 units missing.

3 August 2023: Claimant issued letter before action.

1 September 2023: Proceedings issued.

BASIS OF CLAIM

4. The Defendant is in breach of the Agreement by reason of its failure to deliver the full consignment by the agreed delivery date of 19 April 2023 and its failure to account for three missing units valued at £87,500 each.

5. The Claimant has suffered loss and damage as a direct result of the Defendant's breach, including but not limited to: (a) the market value of the missing units (£262,500); (b) consequential losses arising from cancelled contracts with downstream buyers (£94,200); and (c) storage and insurance costs incurred during the period of delay (£12,800).

RELIEF SOUGHT

The Claimant claims:

- (a) Damages in the sum of £369,500;
- (b) Interest pursuant to section 35A of the Senior Courts Act 1981;
- (c) Costs of these proceedings;
- (d) Such further relief as the Court considers appropriate.

Signed: James R. Whitmore, Solicitor for the Claimant Date: 1 September 2023
Pearson Specter Litt LLP, 100 Kings Road, London, EC2A 4BN | Tel: 020 7123 4567